

1 ENGROSSED HOUSE
2 BILL NO. 3152

By: Grego of the House

3 and

4 Murdock of the Senate
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7 An Act relating to motor vehicles; amending 47 O.S.
8 2021, Section 172, which relates to powers and duties
9 of enforcement officers of the Corporation
10 Commission; authorizing general criminal law
11 enforcement authority upon receiving certain consent;
12 deleting certain search and seizure prohibition; and
13 providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 47 O.S. 2021, Section 172, is
16 amended to read as follows:

17 Section 172. A. Every owner of any motor vehicle, the agents
18 or employees of the owner, and every other person who violates or
19 fails to comply with or procures, aids, or abets in the violation of
20 Sections 161 through 180m of this title or the Motor Carrier Act of
21 1995, or who fails to obey, observe, or comply with any order,
22 decision, rule or regulation, direction, demand, or requirement of
23 the Corporation Commission, or who procures, aids or abets any
24 corporation or person in the person's, or its, refusal or willful

1 failure to obey, observe or comply with any such order, decision,
2 rule, direction, demand, or regulation shall be deemed guilty of a
3 misdemeanor. Upon conviction in a criminal court of competent
4 jurisdiction, such misdemeanor is punishable by a fine of not
5 exceeding One Thousand Dollars (\$1,000.00).

6 B. The Corporation Commission shall report to the Attorney
7 General of this state and the district attorney of the proper county
8 having jurisdiction of such offense, any violation of any of the
9 provisions of Sections 161 through 180m of this title or the Motor
10 Carrier Act of 1995 or any rule of the Corporation Commission
11 promulgated pursuant to the provisions of Sections 161 through 180m
12 of this title or the Motor Carrier Act of 1995, by any motor vehicle
13 owner, agent or employee of such owner, or any other person. Upon
14 receipt of such report, the Attorney General or the district
15 attorney of the proper county having jurisdiction of such offense
16 shall institute criminal or civil proceedings against such offender
17 in the proper court having jurisdiction of such offense. Any
18 willful failure on the part of members of the Corporation
19 Commission, the Attorney General or any district attorney, to comply
20 with the provisions of this section, shall be deemed official
21 misconduct. The Corporation Commission shall report such complaints
22 so made to the Governor of this state who shall direct and cause the
23 laws of this state to be enforced.

1 C. Any person failing, neglecting or refusing to comply with
2 the provisions of Sections 161 through 180m of this title or the
3 Motor Carrier Act of 1995, or with any rule, regulation, or
4 requirement of the Corporation Commission promulgated pursuant to
5 the provisions of Sections 161 through 180m of this title or the
6 Motor Carrier Act of 1995, shall be guilty of contempt of the
7 Corporation Commission, and shall be subject to a fine to be imposed
8 by the Corporation Commission in a sum not exceeding Five Hundred
9 Dollars (\$500.00). Each day on which such contempt occurs shall be
10 deemed a separate and distinct offense. The maximum fine to be
11 assessed on each day shall be Five Hundred Dollars (\$500.00). All
12 fines collected pursuant to the provisions of this section shall be
13 deposited in the State Treasury to the credit of the Corporation
14 Commission Trucking One-Stop Shop Fund, as created in Section 1167
15 of this title. This subsection shall not apply in the specific
16 instance of load capacity violations or violations applicable to the
17 transportation or discharge of deleterious substances provided for
18 by specific statutory provisions.

19 D. The Corporation Commission shall appoint a director of
20 transportation, a deputy director, an insurance supervisor, an
21 insurance clerk, two stenographers, a secretary to the director, an
22 identification device supervisor and an assistant identification
23 device supervisor at such salaries as the Legislature may from time
24 to time prescribe. The employees shall be allowed actual and

1 necessary travel expenses pursuant to the provisions of the State
2 Travel Reimbursement Act. All of the expense claims shall be
3 presented and paid monthly.

4 E. Enforcement officers, appointed by the Corporation
5 Commission, are hereby declared to be peace officers of this state.
6 Such officers shall be vested with all powers of peace officers in
7 enforcing the provisions of Sections 161 through 180m of this title
8 and the Motor Carrier Act of 1995 in all parts of this state and
9 general criminal law enforcement authority upon the prior consent of
10 the official in charge of a state law enforcement agency, sheriff,
11 or chief of police in whose territorial jurisdiction the exercise of
12 such authority occurs.

13 The powers and duties conferred upon said enforcement officers
14 shall in no way limit the powers and duties of sheriffs or other
15 peace officers of the state, or any political subdivision thereof,
16 or of members of the Division of Highway Patrol, subject to the
17 Department of Public Safety.

18 F. The enforcement officers when on duty, upon reasonable
19 belief that any motor vehicle is being operated in violation of any
20 provisions of Sections 161 through 180m of this title or the Motor
21 Carrier Act of 1995, shall be authorized to require the driver of
22 the vehicle to stop and submit to an inspection of the
23 identification device, or devices, in the vehicle, and to submit to
24 such enforcement officer bills of lading, waybills, or other

1 evidences of the character of the commerce being transported in such
2 vehicle, and to submit to an inspection of the contents of such
3 vehicle for the purpose of comparing same with bills of lading or
4 shipping documentation, waybills, or other evidences of
5 transportation carried by the driver of the vehicle. The officers
6 shall not have the right to plea bargain.

7 G. The enforcement officers are authorized to serve all
8 warrants, writs, and notices issued by the Corporation Commission
9 relating to the enforcement of the provisions of Sections 161
10 through 180m of this title or the Motor Carrier Act of 1995 and the
11 rules, regulations, and requirements prescribed by the Corporation
12 Commission promulgated pursuant to Sections 161 through 180m of this
13 title or the Motor Carrier Act of 1995.

14 H. ~~The enforcement officers shall not have the power or right~~
15 ~~of search, nor shall they have the right of power of seizure, except~~
16 ~~as provided in Sections 161 through 180m of this title or the Motor~~
17 ~~Carrier Act of 1995.~~ The enforcement officers are authorized to
18 hold and detain any motor vehicle operating upon the highways of
19 this state, if, the enforcement officer has reason to believe that
20 the vehicle is being operated contrary to the provisions of Sections
21 161 through 180m of this title or the Motor Carrier Act of 1995, or
22 the rules, regulations, and requirements of the Corporation
23 Commission promulgated pursuant to Sections 161 through 180m of this
24 title or the Motor Carrier Act of 1995.

1 I. No state official, other than members of the Corporation
2 Commission, shall have any power, right, or authority to command,
3 order, or direct any enforcement officer to perform any duty or
4 service authorized by Sections 161 through 180m of this title or the
5 Motor Carrier Act of 1995.

6 J. Each of the enforcement officers shall, before entering upon
7 the discharge of their duties, take and subscribe to the usual oath
8 of office and shall execute to the State of Oklahoma a bond in the
9 sum of Twenty-five Thousand Dollars (\$25,000.00) each, with
10 sufficient surety for the faithful performance of their duty. The
11 bond shall be approved and filed as provided by law.

12 K. No enforcement officer or employee of the Oklahoma
13 Corporation Commission shall have the right to plea bargain in motor
14 carrier or motor transportation matters except the chief legal
15 counsel of the Commission or an assign of the legal staff of the
16 chief legal counsel.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 5th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate